Duplicative review of GM's § 998 Offer 0.5 hours ($325) on 1/17/25 and 1/24/25: GM argues that two different time keepers reviewed this but, only one can bill so a 0.3 hour ($195) reduction is needed. It is not clear that this entry was duplicated. No reduction is needed.

Multiplier

Plaintiff requests a multiplier because this is purportedly a complicated case. The purpose of a fee enhancement is primarily to compensate the attorney for the prevailing party at a rate reflecting the risk of nonpayment in contingency cases as a class. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1138.) The adjustment to the lodestar figure constitutes earned compensation that is intended to approximate market-level compensation for services, which typically includes a premium for the risk of nonpayment or delay in payment of attorney's fees. (*Ibid*.) The court declines to award an enhancement or positive multiplier. Though Plaintiff's counsel took the case on a contingency basis, the risk of not obtaining fees in this case is virtually nonexistent as attorney fees are mandatory.

Attorney fees granted in a reduced, but reasonable amount of $19,668.50 - $5,523.00 + $3,500.00 = $17,645.50.

Costs

Plaintiff filed a Memorandum of Costs in the amount of $1,792.15, which GM does not challenge.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2304017	MIRAMORE, LLC VS TYLER	HEARING ON MOTION FOR SUMMARY ADJUDICATION ON COMPLAINT OF MIRAMORE, LLC

Tentative Ruling: Hearing continued to September 3, 2026 at 8:30 a.m. in Department PS2.

Defendant Brokers to file Brian Sullivan deposition no later than August 7, 2026. A supplemental reply is due by Plaintiffs no later than August 14, 2026.

Steven Traxler ('Traxler") purchased property in Palm Springs on August 6, 2020 (the "Property"). Traxler's interest in the property has been assigned to Plaintiff Miramore, LLC. Traxler did not visit the Property prior to purchasing and relied on his real estate agents Brian Sullivan, Keller Williams Luxury Homes ("Keller Williams") and Michael Hilgenberg ("Hilgenberg") and the sellers Richard John Tyler ("Tyler") and Lisa Trafficante's ("Trafficante") disclosure statements regarding the Property. It is alleged that Tyler and Trafficante stated in the Property's listing that it had new plumbing, which was false. Plaintiff alleges that the seller's real estate agent and broker of record – John White ("White"), Berkshire Hathaway Homeservices California Properties ("Berkshire"), and AC Palm Desert Corporation ("AC Palm"), should have been aware that this assertion was false. Plaintiff contends that Traxler hired Advantage Inspection Professionals, LLC ("Advantage") to inspect the Property, which found no issues with the Property. After Traxler moved into the Property, he discovered that the plumbing did not work properly. The toilets did not flush all of the way or properly fill. After retaining a plumber, it was discovered that the pipes were not new and had been destroyed by a nearby Ficus's root structure. Plaintiff had to remove massive amounts of mature landscaping and destroy the manicured grounds to fix the issue. This cost Plaintiff in excess of $200,000. Traxler also became aware of frequent helicopter activity overhead because the Property is located in the helicopter flight path of the nearby hospital's emergency helipad. This, too, was not disclosed.

The operative Complaint, filed August 8, 2023, asserts causes of action for: (1) Violation of Civil Code § 1102; (2) Failure to Disclose Material Facts; (3) Fraud; (4) Breach of Duty to Disclose; (5) Breach of Duty to be Honest and Truthful; (6) Negligence; (7) Negligence; and (8) Negligence.

Cross Complaint. On July 24, 2024, Tyler and Trafficante filed a cross complaint against White and AC Palm for (1) Breach of Fiduciary Duty; (2) Negligence; (3) Implied Indemnity; and (4) Declaratory Relief.

Trial is currently set for September 11, 2026.

Motion for Summary Adjudication ("MSA"). Plaintiff now moves for summary adjudication as to the first cause of action against Tyler and Trafficante. Plaintiff also moves for MSA as to the fourth and sixth causes of action against AC Palm and White.

In opposition, Tyler and Trafficante (the "Sellers") and White and AC Palm ("Brokers") argue triable issues exist. Brokers seek a continuance pursuant to Code of Civil Procedure section 437c, subdivision (h) because discovery is ongoing and evidence exists which cannot be presented.

<u>Summary Judgment/Adjudication</u>

A plaintiff moving for summary judgment bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto, while a defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 286, 844.) A plaintiff may move for summary adjudication of a cause of action if the plaintiff asserts there is "no defense" to that cause of action; the plaintiff's burden of proof on such a motion is to prove each element of the cause of action entitling the party to judgment on that cause of action. (Code Civ. Proc., § 437c, subds. (f)(1), (p)(1); *Paramount Petroleum Corp. v. Superior Court* (2014) 227 Cal.App.4th 226, 241.) "Summary adjudication motions are procedurally identical to summary judgment motions." (*Serri v. Santa Clara Univ.* (2014) 226 Cal.App.4th 830, 859.)

It is improper for the court to weigh the evidence or determine the credibility on a motion for summary judgment or adjudication. (*Binder v. Aetna Life Insurance Co.* (1999) 75 Cal.App.4th 832, 840.) "Any doubts as to the propriety of granting the motion are resolved in favor of the party opposing the motion." (*Am. Airline v. Sheppard, Mullin, Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1048.)

<u>Procedural Issue(s)</u>

Sellers' Opposition to Separate Statement / Improper Format

Some of the "disputes" are not true disputes because they are either consistent with Plaintiff's evidence or the evidence that Sellers provide do not dispute the Undisputed Fact ("UF"). For example, UF #3 states, "Among other details and descriptions of the Property, the Listing also stated that the Property had 'New Plumbing.'" Sellers dispute this as misstating evidence and asserts, "The cited listing stated, 'New plumbing and 600 amp electrical allow for expansion. Bring your dreams." This is not a true dispute. Rather, it is an objection mischaracterized as a dispute. Even as an objection, it is meritless. Sellers similarly asserts objections as "disputes" to other UF: #4, 5, 9, 11, 18, 19, 21, 25, 26, 27, 29-31, 33, 34, 35, 37-42, and 49.

"The opposing party's responses to the separate statement must be in good faith, responsive and material. Responses should directly address the fact stated, and if that fact is not in dispute, the opposing party must so admit. It is completely unhelpful to evade the stated fact in an attempt to create a dispute where none exists." (*Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 875-876.) "Courts should…not hesitate to disregard attempts to game the system by the opposing party claiming facts are 'disputed' when the uncontroverted evidence clearly shows otherwise." (*Id.* at 876.)

Moreover, citing objections and the basis for objection does not conform to California Rules of Court, rule 3.1350(f)(2) that requires the opposing party to "state the nature of the dispute and describe the evidence that supports the position that the fact is controverted" and cite to the evidence to support the position that the fact is controverted. (See also *Hodjat v. State Farm* (2012) 211 Cal.App.4th 1, 8.) Thus, the objections are improper.

<u>Evidentiary Objection(s)</u>

Sellers' Objections

The Court SUSTAINS Sellers' objections #7, 13, and 14. The Court OVERRULES Sellers' objections #1, 2, 3, 4 5, 6, 8, 9, 10, 11, 12, 15, 16, 17.

Brokers' Objections

As to Evans's declaration, the Court SUSTAINS the objections to paragraphs 5-19, 22, 23, 27 and OVERRULES the objections to paragraphs 1, 20, 21, 24, 25, 28, 29.

As to Traxler's declaration, the Court SUSTAINS the objections to paragraphs 8, 15 and OVERRULE the objections to paragraphs 4, 7, 9, 10, 14, 16, 17, 18, 19, 20.

<u>1st Cause of Action – Violation of Civil Code § 1102 et seq. (against Sellers)</u>

Plaintiff argues Sellers violated Civil Code section 1102, et seq. (1) by representing the Property to have new plumbing despite the property's sewer lines were clogged with years' worth of Ficus tree roots and (2) failing to disclose of the existence of helicopter noise. Plaintiff asserts had he known about the foregoing, it would have been material to Plaintiff's decision-making process as to the price he would have paid or whether he would have purchased the Property at all.

Under Civil Code section 1102, et seq., sellers have a statutory obligation to provide written disclosures to buyers regarding the physical condition of the property. Sellers and seller's agents have a duty to disclose to the buyer any facts which may materially affect the value of desirability of the property where the facts are not known to or within the reach of the diligent attention and observation of the buyer. The statute requires that the Transfer Disclosure Statement ("TDS") be a copy of the statutory form, filled out and signed by the seller and separately certified by the seller's agent. (Civ. Code, § 1102.6.) The form is a "check the box" format requiring a yes or no answer to each question relating to the listed disclosure, and if the answer is "yes" an additional explanation of that item must be included. (*Id.*) All disclosures must be made in good faith, which means honesty in fact in the conduct of the transaction. (Civ. Code., § 1102.7.) "[A]ny person who willfully or negligently violates or fails to perform any duty described by any provision of this article shall be liable in the amount of actual damages suffered by a transferee." (Civ. Cde, § 1102.13.)

"In a real estate transaction, 'whether the matter which was not disclosed was of sufficient materiality to have affected the value or desirability of the property is…a question of fact.' [Citation.]" (*Calemine v. Samuelson* (2009) 171 Cal.App.4th 153, 162 [Civil Code 1102.6 duty was not intended to "alter a seller's common law duty of disclosure"].)

Here, it is undisputed that Sellers and their agent/broker, White, are subject to the requirements of Section 1102, et seq. (UF #1, 44.) Plaintiff presents evidence that White confirmed the MLS listing of the Property on June 23, 2020 was true and accurate. (UF #1-2.) Among other details and descriptions of the Property, the Listing also stated that the Property had "new plumbing" (UF #3), which Sellers were aware of. (Tyler Depo., pg. 33:12-21.) Traxler purchased the Property in reliance on the listing stating the Property had "new plumbing". (UF #4.)

The TDS statutory form requires a seller to confirm whether the seller is aware of "flooding, drainage or grading problems" and "neighborhood noise problems or other nuisances." (Civ. Code, § 1102.6.) In their TDS form, Sellers disclosed there were no neighborhood noise problems or other nuisances but that there was "flooding, draining or grading problems." (Traxler Decl., Exh. G, "TDS") As to the draining problem, the TDS states the only drainage problem was "in the historic storm/downpour (2019) puddling occurred inside the doors of the Cantina. Subsided quickly with no damage." (*Id.*)

However, the evidence shows the Property had broken plumbing pipes and sewer lines that were clogged with years' worth of Ficus tree roots that require replacement. (UF #13-25.) Plaintiff's evidence shows Sellers knew about the plumbing problem. (UF #29.) Tyler testified that Sellers stayed in the upstairs unit of the guesthouse instead of the main house. (UF #30.) Plaintiff explains the guesthouse was not connected to the City sewer lines and did not suffer from the clogged and broke sewer lines connected to the main house, which the plumber confirmed. (Evans Decl., ¶16.) Plaintiff argues this demonstrates Sellers' knowledge of the pipe and sewer issue. Moreover, Tyler testified that there was no repiping at the Property. (Tyler Decl., ¶34:10-25.)

As to the noise or nuisance, Traxler testified that on his first night at the Property, Traxler experienced thunderous noise and intense vibrations from a helicopter. (UF #8-11.) Traxler learned the helicopter served the trauma center at Desert Regional Medical Center just a few blocks from the Property. (Traxler Decl., ¶8.) Indeed there was a direct overhead helicopter traffic at the Property leading to the local hospital. (*Id.* at ¶10.) Records from one of the medical transport companies that fly helicopters in and out of local hospital show 2,193 patient-occupied flights dropping off and picking up patients at the hospital during 2019-2022. (UF #41.) When the Property was sold in Plaintiff in August 2020, there were 289 patient-occupied helicopter transports from January 1 to July 30, 2020. (UF #42.) This is circumstantial evidence that tends to show Sellers had knowledge of the helicopter noise and traffic.

Although the undisclosed plumbing issues have been repaired, the helicopter traffic remains indefinite for the foreseeable future, which disturbs Traxler's ability to enjoy the Property. (UF #43, 45.) Traxler testified that had he known about the plumbing and noise issues, he would never have raised his offer by $500,000 to purchase the Property, and he relied on the affirmative representation that the Property had "New Plumbing" so that plumbing was not a concern. (Traxler Decl., ¶19.)

Based on the foregoing, Plaintiff satisfied his initial burden under Code of Civil Procedure section 437c, subdivision (b)(3). The burden shifts to Sellers.

Sellers deny actual personal knowledge of any "sewer line" issues. Sellers testified that the Property was not used as their primary residence due to renovations that were done in the primary house and COVID. (Defendants' Ultimate Fact ["DUF"] #52-55.) Prior to the sale of the Property, Sellers were not aware of anyone in his family experiencing any draining issues, odors, drain backing up, sewage backup, or issues requiring a plumber to come out for service. (DUF #57, 59.) Sellers maintain they were not aware that the guesthouse was not on the city sewer system. (DUF #62.) The inspector tested all plumbing and found everything functioned. (DUF #58.) Sellers were not aware that the guesthouse was not on the City sewer system. (DUF #62.) Moreover, Plaintiff discovered the sewage issue 8 months after escrow closed in August 2020 and there is no evidence establishing that the Ficus roots means Sellers had nondraining sewage issues eight months prior.

In addition, Sellers presented evidence that Plaintiff was told, in writing, prior to closing that “new plumbing” did not include anything related to the sewer system. In an email to Plaintiff, Sellers addressed the plumbing as follows: “Plumbing—All of the Kitchen and Family wing and master-wing (including Spa bedroom) plumbing is all new. I think the Copper bath – was also redone—I don’t know definitely on Cantina Bar or the Upstairs—they may have some new and some older plumbing.” (DUF #67; Sellers’ Evidence, Exh. 3.) Sellers argue that based on this email, Plaintiff failed to exercise reasonable care to protect itself in violation of Civil Code section 2079.5, which imposes a duty on prospective buyers to exercise care to protect himself, including facts known to or within the diligent attention and observation of the buyer.

As to the helicopter noise, Sellers argue Plaintiff failed to establish Sellers had personal knowledge of any “helicopter noise”. Sellers point out the flight logs Plaintiff introduced do not log lengths of flights, flight paths, destinations, or helicopter or engine models. All the logs show is that on a certain date at a certain time, a helicopter departs or lands at the hospital. Indeed, when Sellers were at the Property, they never had helicopters fly overhead. (DUF #60.) During the Sellers’ 19 years of ownership, the floor and walls of the Property have never been shaken or vibrated by a helicopter, and no thundering sounds were heard. (DUF #61.)

All disclosures under the TDS must be made in good faith, which requires honesty in fact in the conduct of the transaction. (Civ. Code., § 1102.7.) The evidence that Sellers presented rebuts Plaintiff’s evidence that Sellers failed to act in good faith, especially in light of the email Sellers sent explaining the parameters of the “new plumbing.” As to the helicopter noise, while Plaintiff’s circumstantial evidence via the logs is well received, the admissible evidence establishes Sellers lack knowledge. Thus, Sellers met their burden in presenting a triable issue of material fact. Thus, the merits of damages need not be reached at this point. DENIED

<u>4th Cause of Action – Breach of Duty to Disclose (against Brokers)</u>

Plaintiff argues Brokers violated Civil Code section 2079 by failing to disclose the Property did not have new plumbing, contrary to the MLS listing, and failed to disclose the helicopter traffic noise, which White had actual knowledge of. Plaintiff asserts the MLS listing stating the Property has “New Plumbing” gave Plaintiff comfort and he did not have any reason to believe the sewer lines were broken, corroded and filled with Ficus tree roots.

In opposition, Brokers maintain they did not represent to Plaintiff that all of the plumbing was new. White did not have specific knowledge of plumbing issues. White identified areas where there was new plumbing based on information from Sellers. Brokers point out the plumbing issue only came to light because of a “sewer gas smell.” The plumber could not visually see any problems with the plumbing. Likewise, White did not have specific knowledge that helicopters come and go from the nearby trauma center.

Brokers argue that based on Plaintiff’s responses in discovery, it is evident that there is a likelihood that controverting evidence may exist in the form of communications between Plaintiff and its agent, Brian Sullivan (“Sullivan”). Brokers explain they only successfully took Sullivan’s deposition on July 15, 2026 after Sullivan failed to appear at multiple noticed deposition dates. (Alvarez Decl., ¶4.) Sullivan’s deposition occurred only one day before Brokers’ opposition to the MSA was due, and the certified shorthand reporter was unable to timely prepare a rough draft transcript. (*Id.* at ¶6.) Sullivan’s testimony demonstrates Plaintiff’s knowledge of the alleged plumbing issues and helicopter noises. (*Id.* a ¶5.) Thus, Brokers request leave to file and serve a supplemental declaration attaching Sullivan's deposition transcript upon receipt, and Brokers' Compendium of Exhibits ("BCOE") Exhibit A has been reserved for Sullivan's certified deposition transcript. (*Id.* at ¶7.)

The Fourth District favors continuing summary judgment motions to resolve matters on their merits, even if a continuance would not serve the competing interest of judicial efficiency. (*See Bahl v. Bank of America* (2001) 89 Cal.App.4th 389, 399-400 [holding that even if the need to continue a hearing on a motion for summary judgment to conduct outstanding discovery was due to a party's lack of diligence, "the policy favoring disposition on the merits outweighs the competing policy favoring judicial efficiency."].) In *Levingston v. Kaiser Foundation Health Plan, Inc.* (2018) 26 Cal.App.5th 309, the court of appeal found that the trial court had erred in denying a request to continue a summary judgment motion where the request was made at the hearing and the party had not met the standard for a continuance under Code of Civil Procedure section 437c, subdivision (h). The court analogized the granting of an unopposed summary judgment motion to the equivalent of a terminating sanction and held that the continuance was therefore necessitated unless there had been a history of abuse of pretrial procedures or evidence that the violation was willful.

Based on the foregoing, the Court must grant the request to receive Sullivan's deposition given the trial is currently scheduled for September 11, 2026. (Code Civ. Proc., § 437c, subd. (h) [If it appears from the affidavits submitted in opposition that facts essential to justify opposition may exist but cannot for reasons stated, "the court shall deny the motion, order a continuance to permit…discovery to be had, or make any other order as may be just", emphasis added].)

3.

CASE #	CASE NAME	HEARING NAME
CVPS2500832	MELENDREZ VS UNITED GROUND EXPRESS, INC.	MOTION TO COMPEL FURTHER DISCOVERY RESPONSES TO REQUEST FOR PRODUCTION OF DOCUMENTS, SET ONE BY UNITED GROUND EXPRESS, INC.

Tentative Ruling: Granted.

Responding party is ordered to serve verified responses to the Demand for Production of Documents, Set One, No. 4, 5, 34, and 35 without objections within 30 days of service of notice (CCP § 2031.310).

Responding party is further ordered to pay attorney's fees and costs to moving party in the amount of $3,566.00 within 30 days of service of notice. (CCP 2023.010, 2030.290 (c), 2031.310, and 2033.280.) P

Prevailing party ordered to give notice pursuant to CCP §1019.5.

This is an employment law discrimination action filed February 5, 2025 by Plaintiff Angelique Melendrez against Defendants United Ground Express, Inc., United Airlines, Inc., Donald Miller and Kevin Tomas, which alleges 10 causes of action for 1) discrimination in violation of FEHA, 2) hostile work environment, 3) retaliation in violation of FEHA, 4) failure to provide reasonable accommodation, 5) failure to engage in the interactive process, 6) failure to prevent discrimination, harassment, and retaliation, 7) wrongful termination in violation of public policy, 8) IIED, 9) whistle-blower retaliation in violation of Labor Code section 1102.5, and 10) negligent hiring, supervision, and retention.